

DEFENDANT’S SPECIAL MOTION TO STRIKE SLAPP SUIT AND FOR ATTORNEY FEES AND COSTS

TENTATIVE RULING: Plaintiff’s special motion to strike the Complaint as a strategic lawsuit against public policy is **DENIED**. Plaintiff’s request to strike the Complaint based on the statute of limitations and/or the single publication rule, construed as a Motion for Judgment on the Pleadings, is also **DENIED**.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PRELIMINARY MATTERS

1. Nature of Motion

Defendant Karen Scheuner (erroneously sued as Karen Coffy) specially moves, pursuant to California Code of Civil Procedure, section 425.16, for an order to strike the Complaint filed by Plaintiff RORE Manufacturing Inc., dba, Roof and Realm (RORE) in its entirety on grounds that the Complaint is a strategic lawsuit against public policy (SLAPP).

While not addressed in the Notice of Motion, Ms. Scheuner also contends, through the supporting memorandum (Support Memo), that RORE’s claims are barred by the statute of limitations and/or the single publication rule of Civil Code section 3425.3. RORE addresses these arguments through its Opposition. The Court construes these requests as a Motion for Judgment on the Pleadings.

2. Nature of Claims

It is undisputed that RORE is in the business of producing, delivering, and assembling prefabricated dwelling units for end-user consumers. Ms. Scheuner is a former customer of RORE’s. The gravamen of the Complaint is that RORE has suffered damage as a result of: (1) alleged publications, by Ms. Scheuner, “of multiple damaging and untrue statements about RORE on social media regarding her purchase and installation of the Home” (Complaint at ¶ 7); and (2) alleged communications, by Ms. Scheuner, of defamatory information (*id.* at ¶ 9.)

RORE asserts its counts under theories of defamation – trade libel / business disparagement, and intentional and negligent interference with prospective economic relations.

RORE also seeks Declaratory Relief regarding Ms. Scheuner’s right to continue publishing and communicating negative content about RORE.

B. SPECIAL MOTION TO STRIKE SLAPP

1. Legal Background

“The special motion to strike established in section 425.16 may be used to attack a cause of action if (1) the cause of action arises from ‘any act [by the defendant] in furtherance of the person’s right of petition or free speech under the United States or California Constitution,’ and (2) the defendant was exercising his or her right of free speech ‘in connection with a public issue.’ (Citation.) If the moving defendant establishes those two elements, the burden shifts to the plaintiff to establish there is a probability he or she will prevail on the cause of action.” (*Chabak v. Monroy* (2007) 154 Cal.App.4th 1502, 1511.)

“The anti-SLAPP statute’s definitional focus is not the form of the plaintiff’s cause of action but, rather, the defendant’s activity that gives rise to his or her asserted liability – and whether that activity constitutes protected speech or petitioning.” (*Navellier v. Sletten* (2002) 29 Cal.4th 82, 92 (*Navellier*).)

2. Legal Analysis

a. *The Activity Giving Rise to RORE’s Claim(s) is Protected Activity Under the Statute*

As defined by the anti-SLAPP statute, protected activity includes “any written . . . statement . . . made in a place open to the public or a public forum in connection with an issue of public interest.” (Code Civ. Proc. § 425.16, subd. (e)(3) (Section 425.16).)

The alleged activities that give rise to the asserted liability, and that support RORE’s prayer for declaratory relief, are statements relating to RORE’s business of designing, fabricating and delivering ADUs. (See Complaint at ¶ 7, 11, and 17.) The statements were either published on social media or communicated directly to another of RORE’s customers. (See Complaint at ¶¶ 7, 9-12, 17, 23, 38, and 36.) As RORE concedes, the posts giving rise to its claims were all published “in the private Facebook group ‘How to ADU.’” (Opposition at 2:6-8.) Ms. Scheuner presents evidence that “[t]he Facebook Group . . . has approximately 160,000 members The Facebook Group is purposed for homeowners and ADU-builders ‘to help each other and share questions and answers about building Accessory Dwelling Units in California’” (See Declaration of Karen Scheuner at ¶ 12.) RORE does not dispute or rebut this evidence through its Opposition.

“[R]eviews posted to an Internet website meet [Section 425.16, subd. (e)(3)’s] definition of protected activity.” (*Abir Cohen Treyzon Salo, LLP v. Lahiji* (2019) 40 Cal.App.5th 882, 887-88 (*Lahiji*) [upholding trial court finding that comments posted to a website by a former client regarding quality of a law firm’s services were protected activity]; see also *Chaker v. Mateo* (2012) 209 Cal.App.4th 1138, 1146 (*Chaker*) [“statements posted to the Ripoff Report Web site

about [Plaintiff's] character and business practices plainly fall within in the rubric of consumer information about [Plaintiff's] business and were intended to serve as a warning to consumers about his trustworthiness"].)

“The public interest requirement of section 425.16, subdivision (e)(3) must be “construed broadly” so as to encourage participation by all segments of our society in vigorous public debate related to issues of public interest.’ [Citation.] The Legislature inserted the ‘broad construction’ provision out of concern that judicial decisions were construing that element of the statute too narrowly.” (*Gilbert v. Sykes* (2007) 147 Cal.App.4th 13, 23-24 (*Gilbert*) [held: a public website created by Plaintiff dedicated to the pros and cons of plastic surgery constitutes protected activity under Section 425.16, subdivision (e)(3) where “the Web site was not limited to attacking [plaintiff] but contributed to the general debate over the pros and cons of undergoing cosmetic surgery”].)

The Court finds that, particularly since the passage of SB 477 in 2024, legislation aimed at reducing the local zoning and planning hurdles to the construction of ADUs, subjects relating to the construction thereof are issues of significant public interest.

Based on the foregoing, the Court finds that the statements – allegedly made by Ms. Scheuner – giving rise to RORE’s claim(s) are protected activity pursuant to Section 425.16, subdivision (e)(3).

RORE argues that Ms. Scheuner’s statements are not protected under the holding in *Woodhill Ventures, LLC v. Yang* (2021) 68 Cal.App.5th 624 (*Yang*). In *Yang* a celebrity jeweler posted statements regarding his dissatisfaction with a cake ordered from a local bakery to his social media feed with some 1.5 million followers. (See *id.* at 626-27.) In concluding that Defendant had not made the comments “in connection with an issue of ‘public interest,’” the *Yang* court found that “Yang’s statements did not seek public discussion of anything. They aimed to whip up a crowd for vengeful retribution. They were an unprotected effort ‘to gather ammunition’ in his spat with Big Sugar. The customer was complaining about a cake order. He did not like the cake and he did not like the service. Those were not issues of public interest.” (*Id.* at 632-633.)

Here, by contrast, the alleged statements were made on a social media site dedicated to a matter of public interest, discussion of ADUs in California – the precise business for which RORE holds itself out to the public. The Court finds that these facts distinguish the instant case from *Yang*, and bring it in line with the holdings in *Lahiji* and *Chaker*, cited above.

b. *RORE Has Shown a Probability of Prevailing on the Claim*

“[I]n order to establish the requisite probability of prevailing (§ 425.16, subd. (b)(1)), the plaintiff need only have “stated and substantiated a legally sufficient claim.” [Citations.] ‘Put another way, the plaintiff “must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.”’ [Citations.]” (*Navellier, supra*, 29 Cal.4th at 88-89.) “To show a probability of prevailing for purposes of section 425.16, a plaintiff must

make a prima facie showing of facts which would, if proved at trial, support a judgment in plaintiff's favor." (*Alpha & Omega Dev., LP v. Whillock Contracting, Inc.* (2011) 200 Cal.App.4th 656, 663 (*Alpha & Omega*)). Because the burden on the plaintiff is similar to the standard used in determining motions for summary judgment. "[t]he showing must be made through 'competent and admissible evidence.' [Citations.] Thus, declarations that lack foundation or personal knowledge, or that are argumentative, speculative, impermissible opinion, hearsay, or conclusory are to be disregarded." (*Gilbert, supra*, 147 Cal.App.4th at 26.)

In analyzing the second prong, "We consider "the pleadings, and supporting and opposing affidavits . . . upon which the liability or defense is based." [Citation.] However, we neither "weigh credibility, [nor] compare the weight of the evidence. Rather, [we] accept as true the evidence favorable to the plaintiff [citation] and evaluate the defendant's evidence only to determine if it has defeated that submitted by the plaintiff as a matter of law.'" [Citation.] If the plaintiff 'can show a probability of prevailing on any part of its claim, the cause of action is not meritless' and will not be stricken; 'once a plaintiff shows a probability of prevailing on any part of its claim, the plaintiff has established that its cause of action has some merit and the entire cause of action stands.' [Citation.]" (*Oasis W. Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820.) Thus, where a plaintiff asserts a claim for relief, based on allegations of protected activity, but does so pursuant to several different legal theories (couched as different causes of action) then the plaintiff's demonstration of a probability of prevailing on one or more, but less than all, legal theories, is sufficient to sustain its burden on the second prong of the test as against an anti-SLAPP motion directed at the entire Complaint. (See *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820 ["We shall consider the causes of action for breach of fiduciary duty, professional negligence, and breach of contract together, as all three claims are based on Goldman's alleged breach of his duties as former counsel to Oasis"].)

RORE represents that its first count is pled under a Trade Libel theory for which a two-year statute of limitations applies, and not a traditional Defamation theory, for which a one-year limitations period applies. (See Opposition at 3:14-256.) To prevail on its claim for trade libel, RORE must prove: (1) That Ms. Scheuner made a statement that would be clearly or necessarily understood to have disparaged the quality of RORE's products or services; (2) That the statement was made to a person other than RORE; (3) That the statement was untrue; (4) That Ms. Scheuner knew that the statement was untrue or acted with reckless disregard of the truth or falsity of the statement; (5) That Ms. Scheuner knew or should have recognized that someone else might act in reliance on the statement, causing RORE financial loss; (6) That RORE suffered direct financial harm because someone else acted in reliance on the statement; and (7) That Ms. Scheuner's conduct was a substantial factor in causing plaintiff's harm. (See Judicial Council of California Civil Jury Instruction No. 1731 (CACI).)

The Court finds that RORE has made the requisite showing, of a probability of prevailing on its trade libel theory based on those statements that Ms. Scheuner acknowledges having made. (see Declaration of Karen Scheuner at ¶¶ 13-17, and Exhs. K and M (Scheuner Decl.)) The Court finds the foregoing evidence sufficient to make the requisite showing as to the first (disparaging statement), second (to a third party), and fifth (recognition that third party might react) elements of the claim. Paragraph 28 of the Declaration of Fatima Shahid (Shahid Decl.) is sufficient to make the requisite showing as to the third (falsity) element. The Court finds that,

because the statements all relate to aspects of Ms. Scheuner's own ADU project that she was involved with, the evidence presented is sufficient to create a reasonable inference that Ms. Scheuner was aware that her statements were false, or acted with reckless disregard of the truth when she made them, satisfying, for purposes of the instant motion, the fourth element. (See *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 822 [“[T]he proper inquiry in the context of an anti-SLAPP motion ‘is whether the plaintiff proffers sufficient evidence for such an inference’”].) Finally, the Court finds that paragraphs 31-33, 34, and 37 of the Shahid Decl. are sufficient to make the requisite showing as to the fifth (damage) and sixth (causation) elements.

To be clear, the Court finds only that the evidence produced by RORE, and the reasonable inferences therefrom, when presumed true, are sufficient to “show a probability of prevailing for purposes of section 425.16 . . .” (*Alpha & Omega, supra*, 200 Cal.App.4th at 663.)

Because the Court finds that RORE has established that its claims for relief based on Ms. Scheuner's posted statements have some merit, Ms. Scheuner's motion to strike the Complaint, in its entirety, based on the anti-SLAPP statute, is DENIED. (*Oasis W. Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 820; See also *Baral v. Schnitt* (2016) 1 Cal.5th 376, 396 [held: “cause of action” as used in Section 425.16 means “claims for relief that are based on allegations of protected activity”].)

C. MOTION FOR JUDGMENT ON THE PLEADINGS

“A general demurrer will lie ‘where the complaint has included allegations that clearly disclose some defense or bar to recovery.’ [Citation.]” (*Cryolife, Inc. v. Super. Ct.* (2003) 110 Cal.App.4th 1145, 1152.) And “a motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer.” (*Pierson v. Sharp Mem'l Hosp.* (1989) 216 Cal.App.3d 340, 342 (*Pierson*); see also (Weil & Brown, Cal. Practice Guide – Civ. Pro. Before Trial (Rutter 2026) CH. 7(I)-B, § 7:156 [“Motions to strike can be used to reach defects in or objections to pleadings *that are not challengeable by demurrer*”], and *Allerton v. King* (1929) 96 Cal.App.230, 234 [held: A motion to strike cannot be made to serve the purpose of a special demurrer].)

However, the Court may construe a motion to strike for failure to state a claim as a motion for judgment on the pleadings. [See *Pierson, supra*, 216 Cal.App.3d at 342-343.] The Court, therefore, construes Ms. Scheuner's Motion to Strike on grounds that RORE's claims are barred by the statute of limitations and/or the single publication rule as a Motion for Judgment on the Pleadings.

“Because a motion for judgment on the pleadings is the functional equivalent of a general demurrer, the same rules apply.” (*Hightower v. Farmers Insurance Exchange* (1995) 38 Cal.App.4th 853, 858.) A motion for judgment on the pleadings is therefore treated as “admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court must “construe the allegations of a complaint liberally in favor of the pleader.” (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 438.) Court must also accept as true facts that may be inferred from those

expressly alleged. (*Cundiff v. GTE Cal., Inc.* (2002) 101 Cal.App.4th 1395, 1405.) The Court may also consider as grounds for granting the motion any matter that is judicially noticeable under Evidence Code sections 451 or 452. (Code. Civ. Proc., § 430.30, subd. (a).) Because the motion tests “only the legal sufficiency of the pleading...the question of plaintiff’s ability to prove the[] allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Comm. on Children’s Television, Inc. v. Gen. Foods Corp.* (1983) 35 Cal.3d 197, 213-14.)

A defendant is entitled to judgment on the pleadings if the allegations of the complaint clearly disclose some defense to the claim. (See *Hunt v. County of Shasta* (1990) 225 Cal.App.3d 432, 441.) “[A motion for judgment on the pleadings] based on [an affirmative defense] will not lie where the action may be, but is not necessarily, barred. [Citation.] In order for the bar . . . to be raised by [motion for judgment on the pleadings], the defect must clearly and affirmatively appear on the face of the complaint; it is not enough that the complaint shows that the action may be barred. [Citation.]’ [Citation.]” (*Geneva Towers Ltd. Partnership v. City and County of San Francisco* (2003) 29 Cal.4th 769, 781.)

1. The Claims Are Not Clearly Barred by the Statute of Limitations

“With respect to the choice between the one-year period of section 340, subdivision (3), and the two-year period of section 339, subdivision 1, ‘[the] principle of selection which has emerged is that the one-year period applies to all alleged infringements of personal rights, whereas the two-year period applies only to alleged infringements of property rights. [Citations.]’” (*Guess, Inc. v. Super. Ct.* (1986) 176 Cal.App.3d 473, 478.) “Whereas defamation concerns injury to the reputation of a person or business, trade libel involves false disparagement of the quality of goods or services.” (*Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 340.)

The Court finds that the Complaint contains allegations sufficient to support a claim for defamation based on infringement of property rights. As such, Ms. Scheuner fails to persuade the Court that the claims, or any of them, are clearly barred by the statute of limitations.

2. The Claims are Not Clearly Barred by the Single Publication Rule

“No person shall have more than one cause of action for damages for libel or slander or invasion of privacy or any other tort founded upon any single publication or exhibition or utterance, such as any one issue of a newspaper or book or magazine or any one presentation to an audience or any one broadcast over radio or television or any one exhibition of a motion picture. Recovery in any action shall include all damages for any such tort suffered by the plaintiff in all jurisdictions.” (Civil Code § 3425.3.)

Ms. Scheuner suggests that because all of the causes of action asserted against her in the Complaint (defamation, declaratory relief, and intentional and negligent interference) arise out of the same online publications, RORE’s claims should be “limited to a single cause of action for alleged Libel/Defamation. (Support Memo at 4:1-6.) The argument appears to reflect a

misunderstanding of the single publication rule. Specifically, it appears based on the wrong use of the phrase “cause of action.”

The single publication rule’s reference to “cause of action” is akin to that under the primary rights theory; “The violation of one primary right constitutes a single cause of action, though it may entitle the injured party to many forms of relief, and the relief is not to be confounded with the cause of action, one not being determinative of the other.” (*Wulfjen v. Dolton* (1944) 24 Cal.2d 891, 895-96.) Thus, the single publication rule does not bar a plaintiff from asserting a claim – based on a single violation of a primary right – under several different legal theories. Rather, it serves to alter the common law principal “that each communication of a defamatory remark to a new audience constitutes a separate ‘publication,’ giving rise to a separate cause of action, [which] led to the conclusion that each sale or delivery of a copy of a newspaper or book containing a defamation also constitutes a separate publication of the defamation to a new audience, giving rise to a separate cause of action for defamation.” (*Shively v. Bozanich* (2003) 31 Cal.4th 1230, 1243-1244.)

Ms. Scheuner fails, therefore, to persuade the Court that RORE’s claims, or any of them, are barred by the single publication rule.

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In The Matter of Allison Busse

26CV000841

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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Bryan Vu v. Edward Erik Eriksson

26CV001045

SPECIAL MOTION TO STRIKE

TENTATIVE RULING: The motion is GRANTED IN PART. The second, third, fourth, and fifth causes of action are stricken from the Complaint pursuant to Code of Civil Procedure section 425.16. Paragraphs 14, 15, 16, and 18 of the Complaint are stricken pursuant to Code of Civil Procedure section 436, subdivision (a).

The moving party fails to include, in the notice of this motion, the current version of the Tentative Ruling notice required by Local Rule 2.9, effective 1/1/26. The current version allows a party or counsel to request a hearing by calling the Court *or* emailing the Court, at JudicialReception2@napa.courts.ca.gov and providing specified information set out in Local Rule 2.9. The moving party is therefore directed to immediately provide, by telephone call AND email, the current Tentative Ruling notice explicitly required by Local Rule 2.9 to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of